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Please return to the
Secretary

Executive Order

Delegating to the United States Shipping Board certain powers relating to ocean freight rates and terminal charges.

WHEREAS, Secs. 6 and 12 of an Act of Congress approved July 18, 1918, entitled "An Act to confer on the President power to prescribe charter rates and freight rates and to requisition vessels, and for other purposes", provide as follows:

> "Sec. 6. That the President shall have power to determine, prescribe, and enforce reasonable freight rates and the terms and conditions of affreightment which shall govern the transportation of goods on vessels of the United States, which shall be filed with the United States Shipping Board and open to public inspection. It shall be unlawful to charge or collect any compensation for the transportation of goods on any such vessel, or to enforce or attempt to enforce any terms or conditions of affreightment, or to make or receive any payment or do any act with respect to such transportation, not in accordance with the rates, terms, and conditions so prescribed, anything in any contract, whether heretofore or hereafter made, to the contrary notwithstanding."
>
> "Sec. 12. That the President shall have power to prescribe the order of priority in which persons in possession of dry docks, wharves, lighterage systems, or loading or discharging terminal facilities in any port of the United States, or warehouses, equipment or terminal railways connected therewith, shall serve vessels and shippers, and to determine, prescribe, and enforce the rates, terms, and conditions charged or required for the furnishing of such services, including stevedoring and handling of cargo, and the handling, dispatching, and bunkering of vessels, and to make such rules and regulations with respect to the conduct of any such business as may be necessary and proper. It shall be unlawful to charge, collect, or claim any compensation, or to enforce or attempt to enforce any terms or conditions, or to make or receive any payment or do any act, with respect to any such service not in accordance with the rates, terms, and conditions so prescribed, anything in any contract, whether heretofore or hereafter made, to the contrary notwithstanding."

and

WHEREAS, in Sec. 2 of said Act it is provided:

> "That the President may exercise the power and authority hereby vested in him through such agency or agencies as he shall determine from time to time."

NOW, THEREFORE, it is ORDERED as follows:

1. All power conferred on the President in Sec. 6 of said Act to determine, prescribe and enforce reasonable freight rates and the terms and conditions of affreightment which shall govern the transportation of goods on private merchant vessels of the United States, shall be exercised through the United States Shipping Board.

2. All power conferred on the President in Sec. 12 of said Act to determine, prescribe and enforce the rates, terms and conditions charged or required for services furnished by persons in possession of dry docks, wharves, lighterage systems, or loading or discharging terminal facilities, or warehouses, equipment or terminal railways connected therewith, and for stevedoring or handling cargo, and the handling, dispatching or bunkering of vessels, and all power conferred on the President to make rules and regulations with respect to the conduct of any such business, shall be exercised by the United States Shipping Board; but the power delegated in this paragraph shall not extend to any dry docks, wharves, lighterage systems, or loading or discharging terminal facilities, or warehouses, equipment or terminal railways, which are now or may hereafter be placed under the jurisdiction and control of the Secretary of War or the Secretary of the Navy, or the Director General of Railroads.

3. Nothing contained in this Executive Order shall be deemed to withdraw any power or authority heretofore granted to or now exercised by the Secretary of War, the Secretary of the Navy, the War Trade Board, the Interstate Commerce Commission or the Director General of Railroads.

WOODROW WILSON

THE WHITE HOUSE,
3 December, 1918.

[No. 3017.]

noted.

Dated Dec. 3, 1918

Delegating to the U. S. Shipping Board certain powers relating to ocean freight rates and terminal charges.

U.S. DEPARTMENT OF AGRICULTURE
OFFICE OF THE CHIEF CLERK
RECEIVED
1918
Respectfully referred to

DEC 13 1918